BY ORDER OF THE COMMANDER
KIRTLAND AIR FORCE BASE

KIRTLAND AIR FORCE BASE
INSTRUCTION 31-213

13 AUGUST 2024

Security

ARMED FORCES
DISCIPLINARY CONTROL BOARD

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at www.e-Publishing.af.mil for downloading or ordering

RELEASABILITY: There are no releasability restrictions on this publication

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OPR: 377SFS/S5

Certified by: 377SFS/CC
(Lt Col Ramon Morado)
Pages: 22

This instruction implements Air Force Instruction (AFI) 31-213*, Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations*, and prescribes procedures for the establishment, operation, and coordination of the Armed Forces Disciplinary Control Board (AFDCB). This instruction applies to all military assigned to, on active-duty orders, or Temporary Duty (TDY) to Kirtland Air Force Base (KAFB). This publication does not apply to the Air National Guard (ANG) or Air Force Reserve Command (AFRC), unless assigned to the 377th Air Base Wing (377 ABW) on Title 10 orders. Military personnel who violate the specific prohibitions and requirements of this instruction may be prosecuted under Article 92 of the Uniform Code of Military Justice (UCMJ), or any other applicable article of the UCMJ, as appropriate. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) AFI 33-322, *Records Management and Information Governance Program*, and disposed of IAW with the Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may not be supplemented or further implemented/extended. Submit requests for waivers through the chain of command to the Publication OPR.

Chapter 1—ROLES AND RESPONSIBILITIES 3

1.1. Commander, 377th Air Base Wing. 3

1.2. Board President. 3

1.3. Commanders. 3

1.4. Public Affairs (PA)/Media. 3

1.5. Board Recorder. 4

1.6. 377ABW Judge Advocate. 4

1.7. Board Advisors. 4

Chapter 2—COMPOSITION, DUTIES, AND OPERATION 5

2.1. Composition. 5

2.2. Civil Agency Participation. 6

2.3. Duties and Functions. 6

2.4. Administration. 6

2.5. Meetings. 6

2.6. Observers/Witnesses. 6

2.7. AFDCB Considerations. 6

2.8. Minutes. 7

Chapter 3—OFF-LIMITS ESTABLISHMENTS 8

3.1. Off-Limits Establishments and Areas. 8

3.2. Off-Limits Procedures. 9

3.3. Emergency Declarations. 10

3.4. Removal of Off-Limits Restrictions. 10

Attachment 1—GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION 12

Attachment 2—MEETING MINUTES FORMAT 14

Attachment 3—LETTER OF NOTIFICATION 16

Attachment 4—LETTER OF APPRECIATION 17

Attachment 5—LETTER OF INVITATION 18

Attachment 6—LETTER OF DECLARATION OF OFF-LIMITS 19

Attachment 7—EMERGENCY OFF-LIMITS LETTER 20

Attachment 8—NOTIFICATION OF CONTINUANCE OF OFF-LIMITS 21

Attachment 9—LETTER OF REMOVAL OF OFF-LIMITS RESTRICTION 22

Chapter 1

ROLES AND RESPONSIBILITIES

1.1. Commander, 377th Air Base Wing. The Commander, 377th Air Base Wing (377 ABW/CC), as the installation commander, establishes the AFDCB to advise and make recommendations for eliminating conditions adversely affecting the health, safety, morale, and discipline of personnel assigned to KAFB. The 377 ABW/CC is the decision authority for placing establishments and areas off-limits and the proponent and exception or waiver authority for this instruction consistent with controlling law and instructions.

1.2. Board President. The Deputy Commander, 377th Air Base Wing (377 ABW/CD) serves as the Board President and will:

1.2.1. Schedule and preside at all meetings conducted quarterly.

1.2.2. Provide an agenda to each voting member at least 72 hours prior to each quarterly meeting.

1.2.3. Ensure records, minutes, and correspondence are prepared, distributed, and maintained per **paragraph 2.8**, this instruction, AFI 31-213, and AFRIMS.

1.2.4. Forward recommendations to place establishments and areas off-limits to 377 ABW/CC for final decision.

1.2.5. Develop and provide staff supervision over the AFDCB, obtain copies of civilian law enforcement reports and, will appoint a board liaison to coordinate entry for civilian guests and proprietors.

1.2.6. Appoint base agencies to conduct off-installation inspections or investigations based on the alleged condition or situation presented to the board as authorized by the Board President.

1.3. Commanders. All commanders will familiarize themselves with the mission and services provided by the AFDCB. They will ensure all personnel assigned to their units are briefed on off-limits areas and establishments. Board members will keep their commanders informed of their responsibilities pertaining to the board's functions and actions.

1.4. Public Affairs (PA)/Media. There will not be a media release in connection with AFDCB meetings due to the sensitive nature of the subject matter. Proceedings can be opened to the public and representatives of the news media at the Board President's discretion. The Board President (or appointed designee) is the approval authority for any PA release in the event it becomes necessary to do so. 377 ABW/PA will handle news media interviews and releases according to Department of Defense (DoD), Air Force, and KAFB instructions. News media representatives will be considered observers and will not participate in meetings unless identified as a witness. Members of the news media may be invited to participate in an advisory status in coordination with 377 ABW/PA.

1.5. Board Recorder. An appointed Board Recorder of the Board President's choosing will publish results and maintain records. They will coordinate with 377 ABW/PA and voting members to publish public interest and education articles, draft resolutions, prepare and distribute correspondence, coordinate delivery of official correspondence to proprietors, and maintain all correspondence per this instruction. The Board Recorder will provide a copy of the meeting minutes to voting members of the board after each meeting. See **paragraph 2.8**, and attachments for meeting minutes, formats, and drafting letters.

1.6. 377ABW Judge Advocate. The 377 ABW Judge Advocate (377 ABW/JA) advises the AFDCB president and board members regarding legal propriety of potential actions. The Judge Advocate reviews board decisions, documentation, and correspondence for legal sufficiency and compliance with this instruction and AFI 31-213.

1.7. Board Advisors. Advisors are non-voting representatives and are responsible for receiving reports based on conditions negatively affecting good order and discipline, health, morale, safety, and welfare of personnel assigned to or performing temporary duty at KAFB and presenting them to the board.

Chapter 2

COMPOSITION, DUTIES, AND OPERATION

2.1. Composition. Construct the board according to the needs of the KAFB community with consideration for representation from the following functional areas:

2.1.1. **Voting Members.**

2.1.1.1. 377 ABW/CD (Board President).

2.1.1.2. Commander, 58th Special Operations Wing (or appointed designee).

2.1.1.3. Senior Member of the Air Force Inspection Agency (or appointed designee).

2.1.1.4. Senior Member of the Air Force Research Lab (or appointed designee).

2.1.1.5. Senior Member of the Air Force Safety Center (or appointed designee).

2.1.1.6. Senior Member of the Air Force Operational Test and Evaluation Center (or appointed designee).

2.1.1.7. Senior Member of the Air Force Nuclear Weapon Center (or appointed designee).

2.1.1.8. Senior Member of the Defense Threat Reduction Agency (or appointed designee).

2.1.1.9. Commander, 351st Training Squadron (or appointed designee)

2.1.1.10. Command Chief, 377th Air Base Wing.

2.1.1.11. Command Chief, 58th Special Operations Wing.

2.1.2. **Board Advisors.**

2.1.2.1. 377th Air Base Wing Group Commanders (or appointed designees).

2.1.2.2. Commander/Special Agent in Charge, Air Force Office of Special Investigations (or appointed designee).

2.1.2.3. 377th Air Base Wing Chaplains.

2.1.2.4. 377th Air Base Wing Judge Advocate.

2.1.2.5. Equal Opportunity Office.

2.1.2.6. Sexual Assault Response Coordinator.

2.1.2.7. Military and Family Readiness representative.

2.1.2.8. Alcohol and Drug Abuse Prevention and Treatment representative.

2.1.2.9. Investigations, 377th Security Forces Squadron.

2.1.2.10. 377th Security Forces Squadron Commander.

2.1.2.11. 377th Fire Department.

2.1.2.12. AFDCB Recorder.

2.1.3. The Board President may invite other agencies in an advisor role depending on topics to be discussed.

2.2. Civil Agency Participation. The Board President may invite agencies or individuals to Board meetings as observers, witnesses, or to provide assistance. Assistance shall be limited to knowledge or information pertaining to problem areas within the board's jurisdiction. Board announcements and summaries of results may be provided to appropriate agencies.

2.3. Duties and Functions. The AFDCB will coordinate with civil authorities on problems or adverse conditions existing in the local surrounding communities. The board will make recommendations to commanders concerning procedures to prevent or control any conditions deemed unsafe that may adversely affect the health and wellbeing of military personnel or their families, criminal activity, or suspected criminal activities off the installation within the Albuquerque metropolitan area and surrounding communities near KAFB.

2.4. Administration. Commanders are authorized to acquire, store, process, and report information concerning persons and organizations, whether affiliated with the DoD or not, according to applicable AFIs of the sponsoring commander.

2.4.1. Collect information for persons and organizations which adversely affect the health, safety, morale, welfare, or discipline of personnel, regardless of status.

2.4.2. Identify crime-conducive conditions where there is a direct interest regarding the health, safety, welfare, morale, and discipline of the installation personnel.

2.4.3. Expenses incurred in the course of an official AFDCB investigation or inspection may be reimbursable per finance instructions. The Board President has the authority to commit the 377 ABW to provide funding for services.

2.4.4. The Board President will maintain Board records IAW AFRIMS RDS.

2.5. Meetings. The Kirtland AFDCB will meet quarterly. Proceedings are closed unless otherwise specified. The Board President may specify that a meeting be open.

2.5.1. A majority of voting members present constitutes a quorum for board proceedings.

2.5.2. The Board President may call special meetings. Only the business for which the special meeting was called will be acted upon except by unanimous consent of members present.

2.6. Observers/Witnesses. The board may invite individuals or organization representatives (to include local authorities) as witnesses or observers if they are necessary or appropriate for board proceedings. Refer to AFI 31-213, Appendix B-4a, for a list of authorities to support the AFDCB.

2.7. AFDCB Considerations. All active duty, reserve, guard, and civilian personnel assigned to KAFB (and their family members) are encouraged to file complaints against off-base establishments, businesses, or areas when such complaints are within the board's jurisdiction. People with complaints concerning off-base establishments, businesses, or areas should put the complaint in writing and attach any relevant documents. Submit complaints through the individual's chain of command or directly to the Kirtland Armed Forces Disciplinary Control Board (KAFDCB) President. The board will study and take appropriate action on all reports of conditions considered detrimental to the good order and discipline, health, morale, welfare, safety, and morals of installation personnel. The board will immediately report circumstances involving discrimination based on race, color, sex, religion, age, or national origin to the 377 ABW/JA.

2.8. Minutes. The Board President will appoint a Board Recorder to prepare meeting minutes IAW administrative formats prescribed by the Board President (Refer to **Attachment 2**. Use the most current 377 ABW letterhead). Meeting minutes will constitute the official record of the proceedings (verbatim transcripts are not required). Record the board's action in the order or sequence of actions taken. Include the reasons for approving or removing off-limits restriction. Identify the complete address of an establishment or area involved and include any name change of an establishment or areas with an off-limits restriction. List invited witnesses and observers in the meeting minutes.

2.8.1. Limit distribution of the minutes to voting members and civil or governmental agencies having an official interest in the functions of the board, if appropriate, IAW DODM 5400.07_AFMAN 33-302, *Freedom of Information Act Program* and AFI 33-332, *Air Force Privacy and Civil Liberties Program*.

2.8.2. Minutes are subject to release and disclosure IAW applicable Federal laws, AFIs, and DoD directives.

2.8.3. Forward minutes and recommendations to the Board President for approval before dissemination to the board.

Chapter 3

OFF-LIMITS ESTABLISHMENTS

3.1. Off-Limits Establishments and Areas. The 377 ABW/CC may place establishments and areas off-limits to maintain good order and discipline, health, morale, safety, and welfare of personnel assigned to, or performing temporary duty, at KAFB. Off-limits restrictions are intended to prevent personnel from being exposed to, or victimized by, crime-conducive conditions and unsafe establishments or areas. The 377 ABW/CC has discretion to declare establishments or areas temporarily off-limits to active-duty military members, and Reserve and National Guard members on Title 10 status assigned to the 377 ABW, where sufficient cause exists. Temporary off-limits restrictions issued in an emergency by the 377 ABW/CC will be acted upon by the board as a first priority. IAW AFI 31-213 para. 2-6(a), a change in ownership, management, or name of any off-limits establishment does not, in and of itself, revoke the off-limits restriction. Personnel in a law enforcement capacity will not visit these establishments unless the 377 ABW/CC or Board President specifically determines that visits or surveillance are warranted.

3.1.1. Military members assigned to or performing temporary duty at KAFB are prohibited from entering establishments or areas declared off-limits according to this instruction. Violators may be subject to disciplinary action per AFIs and the UCMJ. Military family members and others associated with the installation should be made aware of off-limits restrictions. Personnel will be informed of off-limits establishments when processing into billeting (which they acknowledge with their signature), at the Visitor Control Center (VCC), the newcomers briefing, First Term Airman Center, applicable SharePoint sites, Force Support Squadron (FSS) Common Access Card (CAC) office (replacement CAC, promotions, etc.) at Consolidated Support, and by their chain of command.

3.1.2. The 377 ABW/CC or Board President will attempt to correct adverse conditions or situations through the assistance of civil leaders or officials prior to initiating any board action unless a emergency situation exists.

3.1.3. The AFDCB will send a notification letter by certified mail with a return receipt requested to the individual or firm responsible for the alleged condition or situation prior to recommending off-limits restriction except when emergency situations exist (Refer to **Attachment 3**. Use the most current 377 ABW blue letterhead). The notification letter will identify the alleged condition or situation, will specify a reasonable time in which the condition or situation must be corrected, and will offer the individual or firm an opportunity to present any relevant information to the board. The board will recommend the imposition of the off-limits restriction only if subsequent investigation reveals the responsible person has failed to take adequate corrective action(s) after receipt of the notification letter.

3.1.4. A specified time limit will not be established when an off-limits restriction is invoked. The determining factor for removing an off-limits restriction will be the adequacy of corrective actions taken by the responsible individual.

3.1.5. A person whose establishment or area has been declared off-limits may petition the Board to remove the off-limits restriction. The petition will be in writing and include a detailed report of action taken to eliminate the condition or situation that caused the restriction. The Board President may direct an investigation to determine the status of corrective actions noted in the petition. The board will recommend removal or continuation of the off-limits restriction to the 377 ABW/CC based on the results of the investigation.

3.2. Off-Limits Procedures. Invoke off-limits restrictions only when substantive information indicates an establishment or area presents conditions adversely affecting the health, safety, welfare, morale, or morals of personnel assigned to or performing temporary duty at KAFB. It is essential the board does not act arbitrarily or take actions of a punitive nature. The board should cooperate with local officials and proprietors of business establishments to accomplish their mission through mutually cooperative efforts. The board should encourage personal visits by local military and civilian enforcement or health officials to establishments considered below standard. The Board should point out unhealthy conditions or undesirable practices to establishment owners or operators to produce the desired corrective action.

3.2.1. The board should not rely solely on letters written by the Equal Opportunity Office and Military Affairs Committee or investigations of alleged racial discrimination in cases involving discrimination.

3.2.2. The Board President or a designee will prepare and submit a report of findings and recommendations at the next meeting if an investigation or inspection of an establishment is deemed necessary.

3.2.3. The board will send the establishment owner or manager a notification letter when it concludes conditions are adverse to military members (refer to **Attachment 3**). The proprietor will be advised to raise standards by a specified date or off-limits proceedings may be initiated if such conditions or practices continue. Send any correspondence to people responsible for adverse conditions which may lead to off-limits action using certified mail.

3.2.4. The board should send a letter of appreciation recognizing a proprietor's cooperation and remedial action(s) to correct undesirable conditions when appropriate (Refer to **Attachment 5**. Use the most current 377 ABW letterhead).

3.2.5. The proprietor will be sent an invitation to appear before the board to explain why the establishment should not be placed off-limits if undesirable conditions are not corrected (Refer to **Attachment 6**. Use the most current 377 ABW letterhead). Any proprietor may designate a representative, in writing, to appear before the board on their behalf.

3.2.6. The Board President will take the following actions if a proprietor has decided to appear before the board:

3.2.6.1. Prior to calling the proprietor, review the findings and decision of the previous meeting, and call for completed inspection reports, and allow those present to ask questions and discuss the case.

3.2.6.2. When the proprietor or their representative is called before the board:

3.2.6.2.1. Present the proprietor with a summary of the complaint concerning the establishment.

3.2.6.2.2. Afford the proprietor an opportunity to present matters in defense.

3.2.6.2.3. Invite those present to question the proprietor. Provide the proprietor an opportunity to make a final statement before being dismissed after the questioning period.

3.2.7. Board members only will deliberate recommended actions in a closed session.

3.2.8. The board should recommend off-limits restriction only when:

3.2.8.1. The letter of notification has been sent.

3.2.8.2. The proprietor has been given an opportunity to appear before the board.

3.2.8.3. Further investigation indicates improvements were insufficient or have not been made.

3.2.9. Use the board's meeting minutes to record the board's actions for each case. Include the procedural steps taken in reaching a decision to recommend placing an establishment off-limits.

3.2.10. Submit board recommendations to the 377 ABW/CC for approval.

3.2.11. The Board President will notify the proprietor that the off-limits restriction has been imposed upon approval of the 377 ABW/CC (Refer to **Attachment 7**. Use the most current 377 ABW blue letterhead).

3.2.12. The adequacy of corrective actions taken by the proprietor of an establishment is the determining factor for removing off-limits restrictions, not a specified time limit when the restriction is imposed.

3.2.13. The board will publish a list of off-limits establishments and areas using 377 ABW/PA media channels or other available means to ensure the widest possible dissemination.

3.3. Emergency Declarations. The 377 ABW/CC may immediately and temporarily declare establishments or areas off-limits in emergencies when necessary. Detailed justification for this emergency action will be provided to the board for deliberations. An emergency board meeting will take place as soon as possible. The circumstances for the action will be reported to the board and it will be their first priority. Send an emergency off-limits letter via certified mail to the proprietor if the restriction continues (Refer to **Attachment 8**. Use the most current 377 ABW blue letterhead).

3.4. Removal of Off-Limits Restrictions. Proprietors of establishments or areas declared off-limits may petition the board for reconsideration at any time. Petitions should include the reason(s) why the restriction should be removed. The board will consider submitted petitions at their next scheduled meeting and make recommendations to the 377 ABW/CC.

3.4.1. The Board President will notify the proprietor if a petition for reconsideration of off-limits restrictions was not approved (Refer to **Attachment 9**. Use the most current 377 ABW blue letterhead).

3.4.2. The proprietor may appeal the decision of the board to the final appeal authority, the Installation Commander. The 377 ABW/JA will review any appeal information and advise the board and Installation Commander accordingly.

3.4.3. The inspecting/investigation agency with approval of the proprietor, will inspect off-limits establishments as needed or when directed by the board.

3.4.4. The board will take the following actions when it learns the proprietor has taken adequate corrective measures:

3.4.4.1. Discuss the matter at the next meeting and make an appropriate recommendation.

3.4.4.2. Forward a recommendation to the 377 ABW/CC to remove the off-limits restriction.

3.4.4.3. Notify the proprietor by letter when the recommendation to remove the restrictions has been approved (Refer to Attachment **9**. Use the most current 377 ABW blue letterhead).

3.4.4.4. Reflect action taken in the meeting minutes.

3.4.5. Establishments remain on the off-limits list indefinitely until such restrictions are removed pursuant to an appeal or adequate protective measures have been taken.

3.4.6. The board will review off-limits establishments on an annual basis.

MICHAEL J. POWER, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 31-213, *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations,* 27 July 2006

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020

AFI 33-332, *Air Force Privacy and Civil Liberties Program,* 10 March 2020

DODM 5400.07_AFMAN 33-302, *Freedom of Information Act Program,* 27 April 2018

Prescribed Forms

None

Adopted Forms

AF 847, *Recommendation for Change of Publication*

Acronyms and Abbreviations

377 ABW/CC—Commander, 377th Air Base Wing

377 ABW/CD—Deputy Commander, 377th Air Base Wing

377 ABW/JA—Judge Advocate, 377th Air Base Wing

AFDCB—Armed Forces Disciplinary Control Board

AFI—Air Force Instruction

AFRC—Air Force Reserve Command

AFRIMS—Air Force Records Information Management System

ANG—Air National Guard

CAC—Common Access Card

DoD—Department of Defense

FSS—Force Support Squadron

IAW—In Accordance With

KAFB—Kirtland Air Force Base

KAFDCB—Kirtland Armed Forces Disciplinary Control Board

OPR—Office of Primary Responsibility

PA—Public Affairs

RDS—Records Disposition Schedule

TDY—Temporary Duty

UCMJ—Uniform Code of Military Justice

VCC—Visitor Control Center

Attachment 2

MEETING MINUTES FORMAT

Figure A2.1. Meeting Minutes Format.

MEMORANDUM FOR 377 ABW/CC

FROM: KIRTLAND ARMED FORCES DISCIPLINARY CONTROL BOARD

SUBJECT: Meeting Minutes

1. The Kirtland Armed Forces Disciplinary Control Board convened pursuant to authority contained in AFI 31-213, *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations*, and KAFBI 31-213, *Kirtland Air Force Base Disciplinary Control Board*.

2. PLACE: 377 ABW Conference Room

3. DATE AND TIME OF MEETING: DDMYYYY at (time)

4. ATTENDANCE:

Members Present:

RANK	FULL NAME	OFFICE SYMBOL	REPRESENTING

Advisors Attending:

RANK	FULL NAME	OFFICE SYMBOL	REPRESENTING

Members Absent:

RANK	FULL NAME	OFFICE SYMBOL	REPRESENTING

Observers and Witnesses Present:

RANK	FULL NAME	OFFICE SYMBOL	REPRESENTING

5. OPENING: XXXX called the meeting to order, and indicated there was a quorum present and the meeting was (open/closed). Members (and/or) guests were introduced and an explanation of the purpose of the Board was conducted.

6. READING OF THE MINUTES: XXXX reviewed the meeting minutes from (date). The meeting minutes were approved as written (or changes were made as indicated).

7. CURRENT OFF-LIMITS LOCATIONS
a.
b.

8. OLD BUSINESS
a.
b.

9. NEW BUSINESS:
a.
b.

10. QUESTIONS/BOARD DISCUSSION:
a.
b.

11. CLOSING REMARKS:

12. ADJOURNMENT:

13. NEXT MEETING: (date, time, location)

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board

Note: **The minutes of the Board proceedings will be forwarded by official correspondence from the Board president to the sponsoring commander for approval of the Board's recommendations. By return endorsement, the sponsoring commander will either approve or disapprove the Board's recommendations.**

Attachment 3

LETTER OF NOTIFICATION

Figure A3.1. Letter Of Notification.

Colonel Jane G. Doe, USAF
President, Kirtland Armed Forces Disciplinary Control Board
377th Air Base Wing
2000 Wyoming Blvd SE
Kirtland AFB NM 87117

First Name/Last Name of Proprietor
Name of Property/Business/Area
Street Address
City, State Zip Code

Dear Sir or Ma'am

This letter is to inform you it has come to the attention of the Kirtland Armed Forces Disciplinary Control Board certain conditions reported at your establishment may adversely affect the health, safety, or welfare of military members of Kirtland Air Force Base.

The Kirtland Armed Forces Disciplinary Control Board is initiating action to determine whether your establishment (area) should be placed off-limits to members of Kirtland Air Force Base if (cite conditions) are not corrected by (date).

A representative of the Armed Forces Disciplinary Control Board will visit your establishment to determine if steps have been taken to correct the conditions outlined above.

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board

Note: **Use certified mail, return receipt requested, if mailed.**

Attachment 4

LETTER OF APPRECIATION

Figure A4.1. Letter Of Appreciation.

Colonel Jane G. Doe, USAF
President, Kirtland Armed Forces Disciplinary Control Board
377th Air Base Wing
2000 Wyoming Blvd SE
Kirtland AFB NM 87117

First Name/Last Name of Proprietor
Name of Property/Business/Area
Street Address
City, State Zip Code

Dear Sir or Ma'am

This is in reference to my letter of (date) concerning the conditions(s) reported at your establishment which adversely affected the health and welfare of military members of Kirtland Air Force Base.

The Kirtland Armed Forces Disciplinary Control Board appreciates your action to correct the condition previously noted and does not contemplate further action with respect to this specific matter.

Your continued cooperation is solicited.

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board

Attachment 5

LETTER OF INVITATION

Figure A5.1. Letter Of Invitation.

Colonel Jane G. Doe, USAF
President, Kirtland Armed Forces Disciplinary Control Board
377th Air Base Wing
2000 Wyoming Blvd SE
Kirtland AFB NM 87117

First Name/Last Name of Proprietor
Name of Property/Business/Area
Street Address
City, State Zip Code

Dear Sir or Ma'am

This is in reference to my letter of (date) concerning the condition(s) reported at your establishment that adversely affects the health, safety, or welfare of military members of Kirtland Air Force Base. The Kirtland Armed Forces Disciplinary Control Board received information that indicates you have not taken adequate corrective action to eliminate the reported condition(s).

Reports presented to the Kirtland Armed Forces Disciplinary Control Board indicate (list and describe conditions).

You are advised the Kirtland Armed Forces Disciplinary Control Board will initiate action to determine whether your establishment should be declared off-limits to members of Kirtland Air Force Base. You may appear in person, with or without counsel, before the Kirtland Armed Forces Disciplinary Control Board at its next scheduled meeting on (date, time, and place). At that time, you will have the opportunity to refute the allegation(s) or to inform the Board of any remedial action(s) you have taken or contemplate taking to correct the condition. It is requested that you inform the president of the Kirtland Armed Forces Disciplinary Control Board if you plan to attend.

Any questions regarding this matter may be addressed to the President, Kirtland Armed Forces Disciplinary Control Board, (address). Every effort will be made to clarify the matter for you.

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board

Note: **Use certified mail, return receipt requested if mailed.**

Attachment 6

LETTER OF DECLARATION OF OFF-LIMITS

Figure A6.1. Letter Of Declaration of Off-Limits.

Colonel Jane G. Doe, USAF
President, Kirtland Armed Forces Disciplinary Control Board
377th Air Base Wing
2000 Wyoming Blvd SE
Kirtland AFB NM 87117

First Name/Last Name of Proprietor
Name of Property/Business/Area
Street Address
City, State Zip Code

Dear Sir or Ma'am

This letter is to inform you that your establishment has been declared off-limits. Military members of Kirtland Air Force Base are prohibited from entering your establishment (premises) as long as this order is in effect. This action is being taken because of (state the conditions) which are detrimental to the (health or welfare) of military members from Kirtland Air Force Base.

This restriction will remain in effect indefinitely, in accordance with established Armed Forces and Kirtland Air Force Base guidance. Removal of the restriction will be considered by the Kirtland Armed Forces Disciplinary Control Board upon presentation of information that satisfactory corrective action has been taken.

Correspondence appealing this action may be submitted to the President, Kirtland Armed Forces Disciplinary Control Board (cite address).

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board

Attachment 7

EMERGENCY OFF-LIMITS LETTER

Figure A7.1. Emergency Off-Limits Letter.

Colonel Jane G. Doe, USAF
President, Kirtland Armed Forces Disciplinary Control Board
377th Air Base Wing
2000 Wyoming Blvd SE
Kirtland AFB NM 87117

First Name/Last Name of Proprietor
Name of Property/Business/Area
Street Address
City, State Zip Code

Dear Sir/Ma'am

1. The Kirtland Armed Forces Disciplinary Control Board convened an emergency meeting on (date) to discuss circumstances that may be unsafe or adversely affect the health and well-being of military personnel or their families at (establishment and address) off-limits.

2. (Investigator/Detective) briefed the Kirtland Armed Forces Disciplinary Control Board of numerous incidents that included (incidents at establishment).

3. Based on the information provided, the Kirtland Armed Forces Disciplinary Control Board recommended the (establishment and address) be placed off-limits temporarily to military personnel in accordance with AFI 31-213. Further investigation will be conducted to determine if permanent banning from this establishment is warranted.

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board

1st Ind, 377 ABW/CD

MEMORANDUM FOR 377 ABW/CC

Approved / Disapproved

JOHN J. DOE, Colonel, USAF
Commander, 377th Air Base Wing

Attachment 8

NOTIFICATION OF CONTINUANCE OF OFF-LIMITS

Figure A8.1. Notification Of Continuance of Off-Limits.

Colonel Jane G. Doe, USAF
President, Kirtland Armed Forces Disciplinary Control Board
377th Air Base Wing
2000 Wyoming Blvd SE
Kirtland AFB NM 87117

First Name/Last Name of Proprietor
Name of Property/Business/Area
Street Address
City, State Zip Code

Dear Sir or Ma'am

The Kirtland Armed Forces Disciplinary Control Board did not favorably consider your request for removal of the off-limits restriction now in effect at your establishment.

This decision does not preclude further appeals or appearances before the Kirtland Armed Forces Disciplinary Control Board at any of its scheduled meetings. Correspondence pertaining to this matter should be addressed to the President, Kirtland Armed Forces Disciplinary Control Board, (cite address).

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board

Note: **Use certified mail, return receipt requested if mailed.**

Attachment 9

LETTER OF REMOVAL OF OFF-LIMITS RESTRICTION

Figure A9.1. Letter Of Removal of Off-Limits Restriction.

Colonel Jane G. Doe, USAF
President, Kirtland Armed Forces Disciplinary Control Board
377th Air Base Wing
2000 Wyoming Blvd SE
Kirtland AFB NM 87117

First Name/Last Name of Proprietor
Name of Property/Business/Area
Street Address
City, State Zip Code Dear

Sir or Ma'am

This letter is to inform you that the off-limits restriction against (name of establishment) is removed effective (date). Military members assigned to, or on temporary duty at, Kirtland Air Force Base are permitted to patronize your establishment as of that date.

The corrective actions taken in response to the concerns of the Kirtland Armed Forces Disciplinary Control Board are appreciated.

JANE G. DOE, Colonel, USAF
President, Kirtland Armed Forces Disciplinary Control Board